

Rules and Regulations - NIELIT

RULES AND REGULATIONS

OF

NATIONAL INSTITUTE OF ELECTRONICS AND INFORMATION TECHNOLOGY (NIELIT)

"AUTONOMOUS SCIENTIFIC SOCIETY OF MEITY" (ASSM)

(Amended as on 31/01/2025)

1. Short Title

These Rules and Regulations shall be called the Rules of the National Institute of Electronics and Information Technology (NIELIT).

2. Definitions

- AAC: Academic Advisory Committee
- AICTE: All India Council for Technical Education
- Board: Management Board of the Society
- Centre: Centre of NIELIT at various locations in India, or abroad
- Chairperson: Minister, Ministry of Electronics & Information Technology (MEITY), Govt. of India
- Committee: Executive Committee of the NIELIT Centre
- Council: Governing Council of the Society
- Executive Director: Executive Director of the respective NIELIT Centre
- MEITY: Ministry of Electronics & Information Technology
- Director General (DG): Chief Executive Officer of the Society
- F&A Committee: Finance & Accounts Committee of the Society
- Government: Government of India
- Registrar: Registrar of the Society
- Services: Education & Training and related services in the field of Information, Electronics & Communications Technology
- Society: National Institute of Electronics and Information Technology
- Deputy Chairperson: Minister of State, MEITY, Govt. of India
- Executive Vice Chairperson: Secretary of the Administrative Ministry (MEITY)
- Year: the period of twelve months from 1 April to 31 March of the subsequent year

3. Administration and Management

3.1 Subject to these rules, the administration and management of the Society vests in the Council.

3.1.1 The Council periodically reviews and monitors the activities of the Society and takes measures as deemed necessary to meet its objectives.

3.1.2 The Council is assisted by the Management Board/AAC/Executive/F&A Committee for the operational, financial and administrative management of the Society, under its overall control. The Board may authorize Members on the staff of the Society to sign and execute documents/contracts on behalf of the Society.

4. Council to be the Apex Body of the Society

The Council is the apex policy-making body of the Society and conducts its administration and management, subject to these Rules.

5. The Council

The Governing Council consists of not less than ten and not more than seventeen members (including the Chairperson):

- Minister, MeitY — Chairperson
- Minister of State, MeitY — Deputy Chairperson
- Secretary, MeitY — Executive Vice-Chairperson
- President, Institution of Electronics & Telecommunications Engineers — Member
- Chairman, AICTE — Member
- An outstanding academician in the field of Information Technology — Member
- Head of Society Division, MeitY — Member
- Joint Secretary/Additional Secretary & Financial Advisor, MeitY — Member
- President, NASSCOM — Member
- NIELIT Group Coordinator, MeitY — Member
- Representative of Ministry of Education (not below Joint Secretary) — Member
- Representative of University Grants Commission (not below Joint Secretary) — Member
- Four representatives from the field of Electronics, Communications, Information Technology, Industries — Member
- Director General (Training), Ministry of Skill Development — Member
- Director General, NIELIT — Member-Secretary
- Two Directors of the Centres are Special Invitees by rotation to Council meetings.

6. Management Board to be the Executive Arm of the Council

The Management Board is the executive arm of the Governing Council, developing policies for the Council's consideration/approval per the Society's objectives, formulating strategies for executing Council decisions, and handling planning, analysis, and coordination of R&D and other thrust-area activities.

7. Management Board

Composition:

- Secretary, MEITY / Executive Vice-Chairperson, Governing Council — Chairperson
- Jt. Secretary, Societies Division, MEITY — Member
- JS&FA, MEITY — Member
- Director General, NIELIT — Member Secretary
- Two Members of the Council nominated by the Chairperson, Governing Council — Member

(3 Directors of NIELIT Centres are Special Invitees by rotation.)

Functions of the Management Board:

7.1 Review progress of undertaken/upcoming/completed projects; analyze achievements against financial and physical targets; decide remedial

measures.

7.2 Review deployment/redeployment of manpower to ensure optimal utilization.

7.3 Approve foreign travel of all staff except the Director General.

7.4 Propose additions, alterations and modifications to the Bye-laws or related matters for Council/Government approval.

7.5 Constitute Sub-committees from experts/members/staff and assign responsibilities.

7.6 Recommend fellowships, scholarships, awards, or other monetary assistance for investigations/study.

7.7 Publish or finance publications of work done/carried out on behalf of the Society.

7.8 Prepare and submit the detailed Annual Budget Estimates for Council approval.

7.9 Prepare and submit the Annual Report of the Society for Council approval.

8. AAC (Academic Advisory Committee) to be the Advisory Body on academic activities

AAC is responsible for setting standards and academic programs of the Society.

Composition:

- A member of the Governing Council (nominated by Chairperson, Council) — Chairperson
- Two representatives from National Institutions of repute, preferably in IECT — Members
- Two representatives of industry — Members
- Representative of NASSCOM — Member
- Representative of MAIT — Member
- Director General, NIELIT — Member
- A representative of NIELIT (nominated by DG, NIELIT) — Member Secretary

Functions of AAC:

8.1 Approve systematic program review to ensure quality standards and relevance of long-term courses/programs to educational/training needs.

8.2 Evolve monitoring and re-evaluation procedures for accredited institutions via inspections.

8.3 Review achievements vs. long-term objectives; identify bottlenecks and suggest remedies.

8.4 Approve norms for admissions, evaluation, examination schedules, and minimum passing standards for certificates/diplomas.

8.5 Approve syllabi, reference materials, and examination norms for long-term courses.

8.6 Approve panels of experts for accreditation/examination activities.

8.7 Review and approve measures to improve course standards.

8.8 Continue Sub-Academic Advisory Committees at Centres.

8.9 Constitute Examination Boards for the Society/Centres.

8.10 Constitute Syllabus Committees as needed.

8.11 Suggest distinguished teachers/experts from other institutions to be

invited.

8.12 Approve long-term academic exchange agreements with other universities/institutions.

8.13 Approve forms and nomenclature of certificates/diplomas awarded.

8.14 Identify weak areas requiring reinforcement.

8.15 Constitute a Moderation Board per paper to ensure question papers align with syllabus, are unambiguous, properly distributed, and free of errors.

8.16 Scrutinize and moderate result statistics before declaration/publication.

9. Constitution and Powers of Finance & Accounts (F&A) Committee

Composition:

- Chief Executive of the Society — Chairperson
- JS&FA, MEITY or representative — Member
- JS (Societies), MEITY or representative — Member
- HOD, concerned Technical Division, MEITY — Member
- Chief Finance Officer / Senior Finance Officer — Member Secretary

9.2 The Committee meets as required; in emergencies, files may be cleared by rotation after two members' approval before being sent to JS&FA. The Committee's powers are recommendatory; recommendations go to the Governing Council for approval.

9.3 Powers of the F&A Committee:

- i) Scrutinize and recommend Budget Estimates/Revised Estimates to the Council.
- ii) Scrutinize Audited Annual Accounts before submission to the Council/General Body.
- iii) Recommend re-appropriation of funds between heads within the approved outlay.
- iv) Recommend write-off of losses above Rs. 25,000 in each case.
- v) Recommend disposal of surplus/obsolete items above Rs. 1 lakh (as per prescribed procedure).
- vi) Prescribe Heads of Accounts for revenue and expenditure.
- vii) Advise the Society on financial matters.
- viii) Financially appraise internal plan projects costing above Rs. 50 lakhs.
- ix) Recommend appointment of Auditors and their fees to the Council.
- x) Any other item allotted by the Governing Council.

10. Executive Committee of the NIELIT Centres

10.1 Composition: there is an Executive Committee at each Centre, with representation from the respective State Government and local industry, for effective day-to-day management:

1. Director — Chairperson** (in pay scale Level 13A and above; in absence, Director General, NIELIT chairs the meetings)
2. Two representatives of State Government (nominated by Chief Secretary of the State) — Member

3. Representative of Academic Institution of the State (nominated by DG, NIELIT) — Member
4. Representative of Industry of the concerned State (nominated by DG, NIELIT) — Member
5. Registrar / Chief Finance Officer — Member
6. Administrative-cum-Finance Officer — Member Secretary

10.2 Functions of the Executive Committee:

10.2.1 Adopt the Annual Accounts, Annual Budget, and policies of the Centre.

10.2.2 Subject to overall Council guidance, take all necessary steps to carry out the Centre's objectives per the Memorandum of Association.

10.2.3 Responsible for day-to-day activities of the Centre, assisted by the Administrative-cum-Finance Officer; assists the Management Board for technical, financial and administrative management of the Centre under Council's overall control.

11. Duration of Membership of the Council/Board/Committee

Where a person becomes a member by reason of an office/appointment held, membership terminates when they cease to hold that office, unless they resign earlier or the nominating authority terminates membership earlier. The administrative Ministry reconstitutes the Governing Council when considered necessary, and reviews membership at least once every two years. Vacancies do not invalidate proceedings of the Council, subject to quorum requirements.

12. Officers and Employees of the Society

Staff of the Society consists of:

- i. Director General
- ii. Executive Directors or Heads of Centres
- iii. Registrar
- iv. Chief Finance Officer
- v. Technical Executives and Technical Support Staff
- vi. Administrative/Finance Executives and Support Staff

13. Bye-laws

13.1 The Council may frame Bye-Laws, not inconsistent with the Rules, for general administration and management, covering: (a) conduct of business and procedure/quorum at Council/Board/Committee meetings; (b) finances and accounts; (c) terms, tenure, emoluments, allowances, conduct rules for officers/employees (with Ministry approval); (d) powers, functions and duties of the Chief Executive and other officers/employees; (e) execution of contracts and instruments; (f) establishment/maintenance of provident fund or other employee-benefit funds; (g) any other administration/management matters; (h) conduct and defence of legal proceedings and signing of pleadings.

13.2 The Council may amend these Rules and Bye-Laws with approval of the

administrative ministry.

13.3 Existing bye-laws remain in force until superseded by new ones framed under these Rules.

14. Appointment of Director General

The Director General is appointed, in the prescribed pay scale per Recruitment Rules, by the Council with Government approval.

15. Powers of Delegation of the Director General

The Director General is the Chief Executive Officer of the Society and manages its affairs per the authority and powers vested under the Bye-laws.

16. Tenure of Appointment of Employees of the Society

Regular employees retire at the age of superannuation, i.e., 60 years, or such age as decided by the Government from time to time.

17. Appointment of Registrar

The Registrar is appointed by the Chairperson, Management Board, on the recommendation of the Director General.

18. Change in the Objects of the Society

The Council, with administrative ministry approval, may change the Society's name and objects, subject to clearance under the Societies Registration Act, 1860.

19. Legal Action

The Director General/Director may sue or be sued in the name of the Society/Centre in all legal proceedings.

20. Seal of the Society

The Registrar or an officer nominated by the Director General is authorized to execute documents/contracts and affix the Seal, on direction of the Chief Executive. Custody of the Seal rests with the Registrar or nominated officer. Heads of Administration/Units execute documents on behalf of Units similarly.

21. Budget, Finance and Accounts

21.1 The Society obtains Council approval for the Annual Budget and forwards copies to the Government of India at the appropriate time.

21.2 Society funds vested in the Council are deposited in approved (scheduled) Banks in the Society's name.

21.3 All income/earnings/properties are solely applied toward the objects in the Memorandum of Association; no dividends, bonus, or profit may be paid to members; no member has personal claim on properties or may profit by virtue of membership.

21.4 Accounts are audited annually by a Chartered Accountant per the Chartered Accountants Act, 1949, and approved by the Council.

22. Annual Report

The Council submits an annual Report on the Society's working to MEITY,

including particulars of the previous year's work and an audited statement of accounts (Income & Expenditure, Balance Sheet).

23. Alteration of Rules

The Council may alter, add to, or modify these Rules as necessary, with administrative ministry approval; changes operate from the notified date.

24. Change of Name

The Council may change the Society's name as necessary, with ministry approval; the change does not affect existing rights/obligations or legal proceedings.

25. Amalgamation and Division of the Society

The Council may amalgamate the Society (wholly or partly) with another Society for better resource utilization; changes operate from the notified date.

Government may also order division/amalgamation after giving the Society an opportunity to represent against the proposal.

26. Dissolution of the Society

The Society may be dissolved per Section 13 of the Societies Registration Act (Act No. XXI of 1860), with prior consent of the administrative ministry. Upon dissolution, after satisfying debts/liabilities, any remaining property shall not be distributed among members; members present may by majority vote determine that such property reverts to a Charitable Society under MEITY's administrative control with similar objectives, per Section 1 of the Societies Registration Act.

27. Application of the Act

The provisions of the Societies Registration Act, 1860 (Act No. 21 of 1860), as applicable to the State of Delhi, apply to the Society.

Certified as a true copy of the Rules and Regulations of NIELIT.

Source: NIELIT Rules and Regulations, official document, amended as on 31/01/2025. This is an HQ-level legal/governance document applicable to all NIELIT centres, not specific to any single centre.